

Terms and Conditions of Photographic Engagement

1. PHOTOGRAPHER / CLIENT RELATIONSHIP

- 1.1 The Client must ensure that all instructions and expectations of Photographer regarding the Booking and any subsequent variations) is documented and agreed upon. An Agreement is created between Client and Photographer upon Booking confirmation whether written, written and partly oral or solely oral. By booking with Aileen Chen you acknowledge that you understand and accept these terms and conditions.

2. LICENCE / USAGE GRANTED TO CLIENT

- 2.1 All photography is to be used for the purpose for which it was originally intended as per booking with the Photographer. It is the Client's responsibility to notify the Photographer of any intended usage before the commencement of the shoot. Unless provided in the Agreement, the copyright in all Photographic Works resulting from the Booking remains the property of the Photographer. These terms override section 21 (3) of the Copyright Act 1994.
- 2.2 Use of the images, by way of (but not restricted to) Advertising, Posters, Billboards, Websites, Bus-Sides etc, must be negotiated and duly authorised with the Photographer prior to the Booking taking place. In general, the confirmed Booking and usage fees cover the right to use images from three months to one year from the shoot date, in New Zealand only, or otherwise specified at the time of Booking.
- 2.3 If the Photographic Works have been produced for an Advertiser named in the Agreement, the Photographic Works may only be used by the Advertiser. The Client must ensure that the Advertiser complies with the Client's obligations and all other terms and conditions of the Agreement.
- 2.4 The Client acknowledges that the Photographer always retains the right to use the Photographic Works in any manner at any time and in any part of the world for the purposes of:
- a) Entering the Photographic Works into photographic competitions or awards and for their use in any material published in connection with promoting those competitions or awards; and
 - b) Advertising or otherwise promoting the Photographer's Work, including through the use of social media; and
 - c) Submitting the Photographic Works for display in art galleries or other premises; and
 - d) Using the Photographic Works for any other purpose within the Photographer's business activities.
- 2.5 Usage rights are not granted to the Client until payment in full has been received. Any further extension of usage or territory must be immediately notified to and negotiated with Aileen Chen.
- 2.6 Aileen Chen reserves the right to refuse the release of images for any use, for any reason, including extensions of existing print and television campaigns. Any image used without written authorisation or prior approval from Aileen Chen will be

deemed unauthorised usage and will be subject to legal proceeding.

3. TRAVEL RATE

- 3.1 Where the Client requires Photographer to travel within New Zealand for a Booking, travel days are charged at a minimum of \$350+gst per day.
- 3.2 Where the Client requires Photographer to travel outside of New Zealand for a Booking, travel days are charged at a minimum of \$750+gst per day.
- 3.3 A travel rate is charged at the overtime hourly rate (to the nearest 15 min.) This is applied to travel outside a 20km radius of Auckland CBD.
- 3.4 The Client acknowledges and agrees that these travel fees reflect the loss suffered by the Photographer as it'd otherwise be a working day.

4. CONDITIONS OF LICENCE

- 4.1 This Licence to use, and the right to use the Photographic Works commences from the date of full payment of all amounts owed to the Photographer in relation to the Photographic Works and the Agreement, except where the Photographer gives express written permission.
- 4.2 This Licence must not be assigned to any third party without the Photographer's prior written permission (which shall not be unreasonably refused), but may be sub-licensed by the Client to the Advertiser named in the Agreement (if any) on the same terms and conditions of this Licence (excluding any further right to sublicense).
- 4.3 The Client is entitled to:
- a) Manipulate, distort or make other alterations to the Photographic Works (including overprinting by text or other Photographic Works), unless this right is expressly excluded in the Agreement; and
 - b) Use only a portion of the Photographic Works.
- 4.4 Copyright in any new Photographic Works created from any manipulation, alteration, distortion or overprinting of text of the licensed Photographic Works shall remain with the Photographer and shall be licensed to the Client on the same terms and conditions of the Agreement.
- 4.5 Any breach of the Agreement by the Client (or by the Advertiser, with the Client's knowledge) which results in damage to the professional reputation of the Photographer, entitles the Photographer to compensation from the Client for that damage in addition to any other remedies available to the Photographer.

5. DATA PRESERVATION

- 5.1 The Client's right to use the Photographic Works under the Licence does not include the right to remove, alter or otherwise affect any rights information accompanying or relating to the Photographic Works, including (without limitation) any notices

or metadata accompanying or part of the Photographic Works recording creator details, copyright ownership or publication status of the Photographic Works. The Client shall not alter or remove any notices attached to the Photographic Works and shall take all reasonable steps to respect and preserve the Photographer's copyright and other rights. Where the Photographer has placed restrictions on access to or use of the Photographic Works, the Client shall not defeat (or attempt to defeat) such restrictions.

6. STORAGE AND BACKUPS

6.1 The Client acknowledges that the Client is responsible for the storage and backup of the Photographic Works supplied by the Photographer. While the Photographer will follow its usual backup procedures (if any) upon delivery of the Photographic Works, the Photographer shall not be liable under any circumstances if unable to produce backups or future reproductions of the Photographic Works upon the request of the Client. Where backups are available, these may be made available to the Client for a fee.

7. PRIVACY AND PERSONAL INFORMATION

- 7.1 As part of creating the Photographic Works, the Photographer may collect and retain personal information about the Client. The personal information may be used by the Photographer for communicating with the Client for any purpose relating to the Photographic Works (including arranging third party services), direct marketing and in connection with these terms and conditions.
- 7.2 The Client authorises the Photographer to collect, retain, use personal information for these purposes (including assessing credit worthiness), and to disclose that information to any person or entity for these purposes.
- 7.3 Personal information collected by the Photographer shall be retained in the Photographer's database. The Client may access and request correction of any of the Client's personal information by contacting the Photographer.
- 7.4 Where section 105 of the Copyright Act 1994 applies, the Photographer shall obtain any necessary consent in accordance with section 107 of that Act, provided however that the Client agrees that the Photographer has the rights described in clause 2.4 unless those rights are expressly excluded in the Booking/Order.

8. PAYMENT

8.1 The Client shall pay the Photographer the various amounts payable in accordance with the Booking/Order and the Agreement. If the Photographer's fee and expenses are not estimated in advance, or for any goods or services different or additional to the Booking/Order, then the Client shall pay the amount invoiced by the Photographer in accordance with the Photographer's Estimate. The Photographer may require a deposit or payment of part or all of the amounts due in advance. Unless otherwise specified in the Agreement, payment of all other amounts are due within 7 days of invoice.

9. JOB-RELATED COSTS

9.1 The Client shall reimburse the Photographer for all Job-Related Costs. Where the Photographer makes payment to others on behalf of the Client, the Photographer may add a service charge or commission, determined at the Photographer's absolute discretion. Unless otherwise specified in the Agreement, the Client must pay all Job-Related Costs and service charges/commissions to the Photographer within 7 days of invoice. The Client is not entitled to any property in:

- a) Any artistic works or other materials created or supplied by the Photographer to support the Photographic Works; or
- b) Any materials used for the creation of an artistic work, which are commissioned or arranged by the Photographer; or
- c) Any goods used in supporting the Photographic Works.

9.2 Such goods, materials, authored or artistic works shall remain the property of the Photographer, unless otherwise specified in the Agreement.

10. URGENT WORK

10.1 Where the Client requires Photographic Works on an urgent basis (which included where the Photographer is unable to re-shoot or correct a shot because of an urgent deadline) the Photographer will not be liable for any losses or damages out of the inability to carry out a re-shoot, including the pre-production costs of arranging a re-shoot.

11. THE ESTIMATE

11.1 Estimate of fees and any related costs are estimates and may be subject to change. The Photographer must bring attention to the Client of any increase to the estimate of 10% or more. Any changes to the Estimate made must be negotiated and agreed upon both Client and Photographer.

12. OVERDUE PAYMENTS

- 12.1 If any monies are not paid in full on the due date, with out without negotiation, the Photographer is entitled to:
- a) Charge interest at a rate of 2.5% (of total booking fee, including usage and overtime), in Client's currency, per or part month overdue on total amount outstanding.
 - b) Suspend any further work until all amounts owing and related costs incurred are paid in full.

13. CANCELLATION

- 13.1 When a Booking is confirmed by the Client / Photographer, the Client becomes liable for payment to the Photographer and the Photographer becomes liable to complete the Booking.
- 13.2 Cancellation of the Booking by the Client or Photographer must be in writing with reasonable notice.
- 13.3 Subject to any specific terms of the Agreement, if the Client cancels the Booking:
- a) Within 24 hours of confirmed shoot day incurs a 100% cancellation fee and any job-related costs incurred in relation to the Booking.
 - b) Greater than three working days and within 1 week of the booked shoot day, the Client is subject to pay a fee of 25% of total booking fee.

13.4 The Client acknowledges and agrees that these cancellation fees reflect the loss suffered by the Photographer and the Photographer's ability to re-schedule work and re-allocate resources as it'd otherwise be a working day.

14. POSTPONEMENT

14.1 Subject to terms in the Agreement, if the Client postpones (not a weather day) or changes the date of the Booking, the following may apply:

- a) Within 24 hours of confirmed shoot day incurs a 50% postponement fee and any job-related costs incurred in relation to the Booking e.g. external studio hire, lights etc.
- b) Greater than 24 hours notice, the Client must pay a fee of 25% of total booking fee for each day the job is postponed.
- c) The Client must pay the Photographer for all job-related costs incurred.

14.2 The Client acknowledges and agrees that these cancellation fees reflect the loss suffered by the Photographer and the Photographer's ability to re-schedule work and re-allocate resources as it'd otherwise be a working day.

15. WEATHER HOLD

15.1 A weather-permitting Booking must be agreed between Client and Photographer prior to the shoot day. A weather call must be made no less than 24 hours in advance to incur no cost. Where a weather day is held and not used or cancelled within at least 24 hours, a \$500+gst (if applicable) will be charged.

15.2 Cancellation and postponement clauses and its subordinates applies where necessary.

16. CLIENT PROPERTY AND MATERIALS

16.1 Client property and all property and material supplied to the Photographer by or on behalf of the Client is held at the Client's risk and the Photographer accepts no responsibility for the maintenance or insurance of that property or material.

16.2 The Client must pay any sum charged or incurred by the Photographer for handling or storing property or material supplied by or on behalf of the Client.

16.3 Where property and materials are left with the Photographer without specific instructions, the Photographer may dispose of them at the end of six months from the date of receiving them and retain the proceeds.

17. CLIENT CONFIDENTIALITY

17.1 The Client must advise the Photographer as to whether any material or information supplied is of a confidential nature. The Photographer will keep that material or information confidential, except where disclosure is reasonably necessary to enable the Photographer to perform the Agreement.

18. INDEMNITY

18.1 The Client undertakes to indemnify the Photographer for any loss, claim, damage, or expense (including costs incurred on a solicitor client basis) suffered or incurred as a result of:

- a) Any breach by the Client of the Agreement;
- b) Any illegal or defamatory Photographic Works produced for the Client;

c) Any infringement of an intellectual property right of any person; or

d) In recovering any moneys due.

18.2 Such loss, claim, damage or expense shall be moneys due for the purposes of these terms and conditions.

18.3 The Client is responsible for obtaining any authorisation, clearance, licence or other form of approval necessary for the lawful use of third party intellectual property works.

19. QUALITY OF PHOTOGRAPHIC WORKS

19.1 Where Photographic Works are not of an acceptable technical quality, making it unfit for the purpose of its specified use, then no fee or Job-Related Costs are due to the Photographer. The Photographer has the right to rectify the defect within a reasonable time, having regard to the urgency of the work. If rectified, the Photographer is entitled to be paid the full fee and Job-Related Costs, but may not charge the Client any extra fee or cost for rectifying the defect.

19.2 Where there is a representative of the Client at the shoot, the representative is responsible for the direction of the work. Acceptance of the work by this representative is confirmation that the Photographer has satisfied the artistic quality and interpretation requirements of the shoot. If the representative is not at the shoot then the Photographer's judgement is absolute within the limits (if any) imposed by any documented agreements on the nature of the intended work.

19.3 If the Photographer produces Photographic Works that are in the same style and structure as the Photographer's past work (by reference to the Photographer's portfolio), the Client is deemed to have accepted the Photographer's artistic interpretation.

20. CONSUMER GUARANTEES ACT 1993

20.1 The Consumer Guarantees Act 1993 may apply to the Photographic Works provided by the Photographer, if the Client acquires those Photographic Works for personal, domestic or household use or consumption. If this Act applies, nothing in the Agreement will limit or exclude the Client's rights under this Act.

20.2 If the Client is acquiring the Photographic Works for business or trade purposes, then the Client's rights are subject to the Agreement only and the Consumer Guarantees Act 1993 shall not apply.

21. PHOTOGRAPHER NOT LIABLE FOR LOSSES

21.1 Except as provided by the Consumer Guarantees Act 1993, the Photographer shall not be liable for:

- a) Any loss or damage arising by reason of any delay in the completion of the Photographic Works; or
- b) Any loss of profits or revenues; or
- c) Any indirect or consequential loss of whatever nature; or
- d) Any loss resulting from any errors or omissions arising from an oversight or a misinterpretation of a Client's verbal instructions.

22. LIABILITY OF PHOTOGRAPHER LIMITED

22.1 Subject to clause 24, the Photographer's liability to the Client for any and all costs, loss or damage suffered by the Client, however caused (including negligence), arising out of or

connected with the performance or failure of performance of any Photographic Works or photographic services supplied by the Photographer, shall not exceed the full value of the payments made by the Client under the Agreement.

22. HEALTH AND SAFETY

22.1 The Client acknowledges and agrees that the Client is responsible for, and shall take all reasonably necessary steps to ensure, its own personal safety and that no action or inaction of the Client causes harm or risk to the health and safety of others. Notwithstanding the above, the Client agrees to comply with any reasonable health and safety directions given by the Photographer.

23. FORCE MAJEURE

23.1 Except for an obligation to pay money, neither the Client nor the Photographer shall be liable for any act, omission or failure to fulfil its obligations, or any loss or damage arising directly or indirectly due to an act of God, explosion, fire, flood, storm, earthquake, subsidence, armed conflict, strike, lockout or labour disputes, civil commotion, intervention of a government, accidents, electrical, heat, light or telecommunication failures, interruption to transportation, weather or any other cause outside the Photographer's control.

24. DISPUTE RESOLUTION

24.1 The Photographer and the Client agree to use their best efforts to resolve any dispute which arises through good faith negotiations.

24.2 Either party may raise a dispute by written notice to the other party. Within 3 working days of receipt of a dispute notice, the parties shall meet (or otherwise communicate if meeting is not practicable) and attempt to resolve the dispute through good faith negotiations on a 'without prejudice' basis.

24.3 Neither party may commence any litigation in relation to the dispute unless 14 days have passed since the parties met (or otherwise communicated) and endeavoured in good faith to resolve the dispute on mutually acceptable terms.

25. CONFLICTS

25.1 In the event of a conflict or inconsistency between these terms and conditions and the Booking/Order, the Booking/Order shall prevail.

26. GOVERNING LAW

26.1 These terms and conditions are governed by, and to be construed in accordance with New Zealand Law. The Client irrevocably submits to the exclusive jurisdiction of the New Zealand courts.

27. ENTIRE AGREEMENT

27.1 The Booking, together with these standard terms and conditions and any other special conditions agreed in writing between the parties, shall constitute the entire Agreement between the parties.

27.2 Each Booking made by the Client shall (together with these standard terms and conditions and any other special conditions

agreed in writing between the parties) constitute a separate Agreement between the parties.

DEFINITIONS

For the purposes of the Agreement, the following definitions shall apply unless the context requires otherwise:

Advertiser: means the end user of the Photographic Works where the Photographer is engaged to produce the Photographic Works by an advertising agency, design firm, or other intermediary.

Agreement: means the Booking, together with these standard terms and conditions and any other special conditions agreed in writing between the parties.

Booking: means an order or request by the Client for the production, supply of Photographic Works, including (without limitation) bookings, orders, quotes, estimates, pitches, decks and appointments made for a shoot, sitting or viewing.

Client: means the person or entity listed on the Booking who engages or instructs the Photographer to produce Photographic Works.

Job-Related Costs: means any costs and expenses incurred by the Photographer on the Client's behalf in providing photographic services or in the creation of the Photographic Works.

Licence/Usage: is a right granted by the Photographer to the Client to use the copyright works of the Photographer on the terms set out above.

Photographic Works: means the deliverable works specified in the Booking and created or supplied by the Photographer. This may include photographs, photographic prints, moving images (video), negatives, digital files, and images in any form or medium.

Photographer: means the photographer and where the context requires may include, the studio, photographic company, employees or sub-contractors.

Estimate: means the Photographer's quote or schedule of prices for goods and services at the date of the Agreement.